

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2751

By: Caldwell (Trey)

AS INTRODUCED

An Act relating to electric transmission facilities; granting certain authority to the Corporation Commission; requiring certain conditions to construct certain electric transmission facilities; determining connection of generation facilities; requiring competitive bids; requiring the use of an independent evaluator; requiring the use of Certificate of Authority; determining use of current facilities; exempting certain electrical cooperatives; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 297 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. The Commission shall have the authority to ensure the development of a new electric transmission facility approved for construction in a Southwest Power Pool transmission plan provides reliable service at the lowest reasonable cost to Oklahoma retail electric consumers.

B. For a retail electric supplier or rural electric cooperative constructing an extension, rebuild, or upgrade of its existing

1 electric transmission facility or to the facilities within or
2 through any territory already served by or to facilities owned by
3 it, the retail electric supplier or rural electric cooperative shall
4 be permitted to construct, own, and maintain such facilities meet
5 the following conditions:

6 1. The retail electric supplier or rural electric cooperative
7 identifies any energy resource to which the electric transmission
8 facility is to be directly connected or, to the extent known,
9 resources to which the electric transmission facility could be
10 connected to integrate new or existing natural gas generation;

11 2. The retail electric supplier or rural electric cooperative
12 solicits competitive bids for construction of the electric
13 transmission facility. Transmission developers, as defined in
14 Section 291 of Title 17 of the Oklahoma Statutes, shall not be
15 precluded from submitting bids through the solicitation described in
16 this section; and

17 3. Such solicitation for competitive bids is overseen by an
18 independent evaluator appointed by the Commission. The Commission's
19 independent evaluator shall consider factors including, but not
20 limited to, cost of construction, cost of operation and maintenance,
21 reliability, and decommissioning in its evaluation.

22 C. Nothing in this section is intended to supersede the rights
23 of any person, firm, corporation, entity, or incumbent electric
24 transmission owner described in any other statute or eliminate any

1 requirement for a transmission developer to seek a Certificate of
2 Authority pursuant to Section 296 of Title 17 of the Oklahoma
3 Statutes.

4 D. Nothing in this section is intended to preclude a
5 transmission developer, as defined in Section 291 of Title 17 of the
6 Oklahoma Statutes, from developing, owning, operating, controlling,
7 managing, or maintaining an existing electric transmission facility
8 within this state.

9 E. An electric cooperative which is not a member of the
10 Southwest Power Pool may construct, own, and maintain local electric
11 transmission facilities without regard to the provisions of this
12 section

13 SECTION 2. This act shall become effective November 1, 2025.

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